

best of his judgment upon a matter within his jurisdiction, and also the rule that a matter of fact so adjudicated by him cannot be put in issue in an action against him, have been uniformly maintained. We shall, therefore, only refer shortly to some other cases shewing the variety of occasions on which these rules have been applied: and [550] we begin with the justly-celebrated judgment of Powell, J., in *Gargrave v. Poole*, 2 Lutw. 387. There, the defendant was held not to be liable in trespass, although, as judge of an inferior court, he had caused the plaintiff to be arrested in an action where the cause of action arose out of his jurisdiction: and, although the *capias* was issued without previous summons, and was not made returnable at a certain time, yet he was justified because he acted as judge in a matter over which he had reason to believe that he had jurisdiction. In *Floyd v. Barker*, 12 Co. Rep. 223, the judge and the grand jury were held not liable to be sued in the Star Chamber for a conspiracy in respect of their acts in court, in convicting of felony. In *Hamond v. Howell*, 2 Mod. 219, the judge who committed for an alleged contempt, under a warrant shewing that in truth no contempt had been committed, was held not liable in trespass, because he had jurisdiction over the question, and his mistaken judgment, together with the void warrant founded thereon, was no cause of action. In *Coe v. Mountain*, 1 Scott, N. R. 132, 1 M. & G. 257, the justice who committed the plaintiff on an information which contained no legal evidence either of any offence or of the plaintiff's participation in that which was supposed to be an offence, was held not to be liable in trespass, because the information was considered to be directed against an offence over which the justice had jurisdiction, if there had been any proof thereof. In *Metcalf v. Hodgson*, Hutton, 120, the defendant was held not liable for taking insufficient bail in a cause in a local court, because in that court it was a judicial act by him. In *Garnett v. Ferrand*, 6 B. & C. 615, 9 D. & R. 657, the coroner who removed the plaintiff from the place of an inquest was held not liable in trespass, as the removal was ordered by him in a [551] judicial capacity. In *Toner v. Child*, 7 Ellis & B. 377, the churchwarden was held not liable for refusing a lawful vote in a vestry, because, although he was acting partly in a ministerial capacity in receiving the votes, yet he was also acting partly in a judicial capacity in refusing a vote, and in that capacity he was not liable for a mistake, if he acted according to the best of his judgment. In *Culder v. Halkett*, 3 Moore, P. C. 28, the magistrate having jurisdiction over Asiatics in Bengal, but not over Europeans, was held not liable in trespass for an apprehension of the plaintiff under a warrant issued by him, he not knowing the plaintiff to be European. The Privy Council say that trespass will not lie for a judicial act without jurisdiction, unless the judge had the means of knowing the defect of jurisdiction: and it lies on the plaintiff in every case to prove that fact. In *Houlden v. Smith*, 14 Q. B. 841, the judge of the county-court was held liable in trespass because he was within the exception thus laid down, and had the means of knowing that he had no jurisdiction. In *Taaffe v. Lord Downes*, 3 Moore, P. C. 36, n., the judge was justified by a plea in trespass shewing a warrant issued by him in his capacity of judge, although the plea did not shew that the warrant was lawful, but was purposely confined to the right of a judge to protection. See the judgment of Fox, J., *id.* 50.

Throughout these cases, and many others, the vital importance of securing independence for every judicial mind is earnestly recognized. The principle applies in its full extent to the judicial duty to be performed by the vice chancellor, and he is therefore entitled to the same protection. As the defendant had jurisdiction in respect of the matter, and the person, and the place, it does not appear to us to be essential to rely on his being a judge of a court of record: but we add [552] some further authorities shewing that the power to imprison made him a judge of record.

The statute of Westminster 2 empowered certain auditors to imprison bailiffs who should be in arrear in their accounts. Lord Coke says by this act the auditors are judges of record: 2 Inst. 380. In *Godfrey's case*, 11 Co. Rep. 43 b., it is said no court can fine or imprison which is not a court of record. In *Beecher's case*, 8 Co. Rep. 58, it is said, "Nulla curia quæ recordum non habet potest imponere finem, neque aliquem mandare carceri, quia ista spectant tantummodo ad curias de recordo." In the report of *Greenwell's case*, under the name of *Dr. Greenwell v. The College of Physicians*, 12 Mod. 388, it is said, that, wherever there is a power de novo created by parliament to fine and imprison, either of these two makes it a court of record. Although in *Dr. Bonham's case*, 8 Co. Rep. 107, the same principle is not affirmed; yet all that Lord Coke says there extrajudicially after deciding that the action lay, has been doubted by Lord